

An Act

ENROLLED HOUSE
BILL NO. 3931

By: Stark of the House

and

Jech of the Senate

An Act relating to death certificates; amending 63 O.S. 2021, Section 1-321, as last amended by Section 10, Chapter 58, O.S.L. 2025 (63 O.S. Supp. 2025, Section 1-321), which relates to amendment of certificate or record; allowing for corrections of a death certificate after one year; providing for promulgation of rules; and declaring an emergency.

SUBJECT: Death certificates

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 63 O.S. 2021, Section 1-321, as last amended by Section 10, Chapter 58, O.S.L. 2025 (63 O.S. Supp. 2025, Section 1-321), is amended to read as follows:

Section 1-321. A. A certificate or record registered under this article may be amended only in accordance with this article and regulations thereunder adopted by the Commissioner of Health to protect the integrity and accuracy of vital statistics records.

B. A certificate that is amended under this section shall be marked "amended", except as provided in subsection D of this section. The date of amendment and a summary description of the evidence submitted in support of the amendment shall be endorsed on or made a part of the record.

The Commissioner shall prescribe by regulation the conditions under which additions or minor corrections shall be made to birth certificates within one (1) year after the date of birth without the certificate being considered as amended. Certificates shall be

marked as "amended" for minor corrections made one (1) year after the date of birth.

C. Upon receipt of a certified copy of a court order, from a court of competent jurisdiction, changing the name of a person born in this state and upon request of such person or his or her parent, guardian or legal representative, the Commissioner of Health shall amend the certificate of birth to reflect the new name.

D. When a child is born out of wedlock, the Commissioner shall amend a certificate of birth to show paternity, if paternity is not currently shown on the birth certificate, in the following situations:

1. Upon request and receipt of a sworn acknowledgment of paternity of a child born out of wedlock signed by both parents;

2. Upon receipt of a certified copy of a court order adjudicating paternity; or

3. Upon receipt of an electronic record from the Department of Human Services indicating that an acknowledgment of paternity has been signed by both parents or a court order adjudicating paternity.

E. For a child born out of wedlock, the Commissioner shall also change the surname of the child on the certificate:

1. To the specified surname upon receipt of acknowledgment of paternity signed by both parents, upon receipt of a certified copy of a court order directing such name be changed or upon receipt of an electronic record from the Department of Human Services indicating that an acknowledgment of paternity has been signed by both parents or a court order directs such name change. Such certificate amended pursuant to this subsection shall not be marked "amended"; or

2. To the surname of the mother on the birth certificate in the event the acknowledgment of paternity is rescinded.

F. The Commissioner shall have the power and duty to promulgate rules for situations in which the Department receives false information regarding the identity of a parent.

G. If within one (1) year of the initial issuance of a certificate of death, a funeral director, or a person acting as

such, requests a correction to any portion of the death record except the information relating to the medical certification portion, due to a scrivener's error, misspelling or other correction of information, the Commissioner of Health, through the State Registrar of Vital Statistics, shall amend the record, provided the request is made in writing or through an electronic system and is accompanied by documentation disclosing the correct information or by a sworn statement of the funeral director. The funeral director, or person acting as such, shall be responsible for any and all amendment fees that may be imposed by the Commissioner of Health for the correction. Up to ten certified copies containing the erroneous original information may be exchanged for certified copies containing the corrected information at no additional cost.

H. Any applicant who desires to make a change, alteration, or amendment one (1) year or more after the initial issuance of a certificate of death, may file a petition with the administrative hearing clerk pursuant to OAC 310:2 and seek a final decision by an administrative law judge granting the relief requested. The applicant shall bear the burden of proof, by clear and convincing evidence, that the proposed change, alteration, or amendment sought by the applicant corrects an error or misstatement of fact as to any information supplied to the State Registrar by the funeral home.

I. The State Commissioner of Health shall promulgate rules and standards necessary to allow the Department to amend vital statistics for minor corrections for other purposes determined necessary in order to protect the integrity and accuracy of the records.

J. Beginning April 26, 2022, the biological sex designation on a certificate of birth amended under this section shall be either male or female and shall not be nonbinary or any symbol representing a nonbinary designation including but not limited to the letter "X".

SECTION 2. It being immediately necessary for the preservation of the public peace, health or safety, an emergency is hereby declared to exist, by reason whereof this act shall take effect and be in full force from and after its passage and approval.

Passed the House of Representatives the 9th day of March, 2026.

Presiding Officer of the House
of Representatives

Passed the Senate the 29th day of April, 2026.

Presiding Officer of the Senate

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____
day of _____, 20_____, at _____ o'clock _____ M.
By: _____

Approved by the Governor of the State of Oklahoma this _____
day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____
day of _____, 20_____, at _____ o'clock _____ M.
By: _____